

WIPO GRATK TREATY

Article 03

Title: Disclosure Requirement for Genetic Resources and Associated Traditional Knowledge

Jurisdiction: International

Category: International

Source Citation: WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge, Article 3, 2024

Plain English Summary:

If a patent application is based on genetic resources, the applicant must disclose the country of origin of those resources or, where that information is unavailable or not applicable, their source. If the invention is based on traditional knowledge associated with genetic resources, the applicant must disclose the Indigenous Peoples or local community that provided the knowledge, or the source of that traditional knowledge.

The Exact Legal Text:

ARTICLE 3

DISCLOSURE REQUIREMENT

3.1 Where the claimed invention in a patent application is based on genetic resources, each Contracting Party shall require applicants to disclose:

- (a) the country of origin of the genetic resources or
- (b) in cases where the information in Article 3.1(a) is not known to the applicant, or where Article 3.1(a) does not apply, the source of the genetic resources.

3.2 Where the claimed invention in a patent application is based on traditional knowledge associated with genetic resources, each Contracting Party shall require applicants to disclose:

- (a) the Indigenous Peoples or local community, as applicable, who provided the traditional knowledge associated with genetic resources, or,
- (b) in cases where the information in Article 3.2(a) is not known to the applicant, or where Article 3.2(a) does not apply, the source of the traditional knowledge associated with genetic resources.

3.3 In cases where none of the information in Articles 3.1 and/or 3.2 is known to the applicant, each Contracting Party shall require the applicant to make a declaration to that effect, affirming that the content of the declaration is true and correct to the best knowledge of the applicant.

3.4 Contracting Parties shall provide guidance to patent applicants on how to meet the disclosure requirement as well as an opportunity for patent applicants to rectify a failure to

include the minimum information referred to in Articles 3.1 and 3.2 or correct any disclosures that are erroneous or incorrect.

3.5 Contracting Parties shall not place an obligation on Offices to verify the authenticity of the disclosure.

3.6 Each Contracting Party shall make the information disclosed available in accordance with patent procedures, without prejudice to the protection of confidential information.

Keywords/Triggers:

genetic resources disclosure, traditional knowledge disclosure, patent application disclosure, country of origin genetic resources, source of genetic resources, Indigenous Peoples traditional knowledge, local community, patent disclosure requirement

Article 02

Title: Definitions of Key Terms Relating to Genetic Resources and Traditional Knowledge

Jurisdiction: International

Category: International

Source Citation: WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge, Article 2, 2024

Plain English Summary:

Article 2 defines the important terms used throughout the Treaty, including applicant, patent application, genetic material, genetic resources, country of origin, source of genetic resources, and traditional knowledge associated with genetic resources. For an Ayurvedic startup or researcher, these definitions help determine whether a patent involving medicinal plants, biological materials, or associated traditional knowledge falls within the Treaty.

The Exact Legal Text:

ARTICLE 2
LIST OF TERMS

For the purposes of this Treaty:

“Applicant” means the person whom the records of the Office show, pursuant to the applicable law, as the person who is applying for the granting of a patent, or as another person who is filing or prosecuting the application.

“Application” means an application for granting of a patent.

“Contracting Party” means any State or intergovernmental organization party to this Treaty.

“Country of origin of genetic resources” means the country which possesses those genetic resources in in situ conditions.

“Based on” means that the genetic resources and/or traditional knowledge associated with genetic resources must have been necessary for the claimed invention, and that the claimed invention must depend on the specific properties of the genetic resources and/or on the traditional knowledge associated with genetic resources.

“Genetic material” means any material of plant, animal, microbial or other origin containing functional units of heredity.

“Genetic resources” are genetic material of actual or potential value.

“In situ conditions” means conditions where genetic resources exist within ecosystems and natural habitats, and, in the case of domesticated or cultivated species, in the surroundings where they have developed their distinctive properties.

“Office” means the authority of a Contracting Party entrusted with the granting of patents.

“PCT” refers to the Patent Cooperation Treaty, 1970.

“Source of genetic resources” refers to any source from which the applicant has obtained the genetic resources, such as a research center, gene bank, Indigenous Peoples and local communities, the Multilateral System of the International Treaty on Plant Genetic Resources for Food and Agriculture (ITPGRFA), or any other ex situ collection or depository of genetic resources.

“Source of traditional knowledge associated with genetic resources” means any source from which the applicant has obtained the traditional knowledge associated with genetic resources, such as scientific literature, publicly accessible databases, patent applications and patent publications.

Keywords/Triggers:

genetic resources definition, genetic material, country of origin, source of genetic resources, traditional knowledge, associated traditional knowledge, based on invention, patent applicant

Article 04

Title: Non-Retroactivity of Treaty Obligations

Jurisdiction: International

Category: International

Source Citation: WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge, Article 4, 2024

Plain English Summary:

The Treaty does not impose its new obligations on patent applications filed before the Treaty enters into force for the relevant Contracting Party. However, existing national laws concerning disclosure may still apply to those earlier patent applications.

The Exact Legal Text:

ARTICLE 4
NON-RETROACTIVITY

A Contracting Party shall not impose the obligations of this Treaty in relation to patent applications which have been filed prior to the entry into force of this Treaty with regard to that Contracting Party, without prejudice to existing national laws on disclosure that apply to such patent applications.

Keywords/Triggers:

non-retroactivity, patent applications, prior patent filing, Treaty entry into force, disclosure obligations, existing national law, patent disclosure, filing date

Article 05

Title: Sanctions and Remedies for Failure to Disclose

Jurisdiction: International

Category: International

Source Citation: WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge, Article 5, 2024

Plain English Summary:

Contracting Parties must establish appropriate and proportionate measures when an applicant fails to provide the required disclosure information. Applicants generally must have an opportunity to correct the failure before sanctions, although that opportunity may be excluded where there is fraudulent conduct or intent; a patent cannot be revoked solely because of a failure to disclose, except that post-grant sanctions or remedies may be available where fraudulent intent is involved.

The Exact Legal Text:

ARTICLE 5
SANCTIONS AND REMEDIES

5.1 Each Contracting Party shall put in place appropriate, effective and proportionate legal, administrative, and/or policy measures to address a failure to provide the information required in Article 3 of this Treaty.

5.2 Subject to Article 5.2(bis), each Contracting Party shall provide an opportunity to rectify a failure to disclose the information required in Article 3 before implementing sanctions or directing remedies.

5.2(bis) A Contracting Party may exclude from the opportunity to rectify under Article 5.2 cases where there has been fraudulent conduct or intent as prescribed by national law.

5.3 Subject to Article 5.4, no Contracting Party shall revoke, invalidate, or render unenforceable the conferred patent rights solely on the basis of an applicant's failure to disclose the information specified in Article 3 of this Treaty.

5.4 Each Contracting Party may provide for post grant sanctions or remedies where there has been fraudulent intent in regard to the disclosure requirement in Article 3 of this Treaty, in accordance with its national law.

Keywords/Triggers:

patent disclosure failure, sanctions, remedies, fraudulent intent, patent invalidation, patent revocation, rectify disclosure, post-grant sanctions

Article 06

Title: Information Systems for Genetic Resources and Traditional Knowledge

Jurisdiction: International

Category: International

Source Citation: WIPO Treaty on Intellectual Property, Genetic Resources and Associated Traditional Knowledge, Article 6, 2024

Plain English Summary:

Contracting Parties may establish databases or other information systems containing information about genetic resources and associated traditional knowledge. These systems may be made accessible to patent offices to help with patent searches and examination, subject to appropriate safeguards and, where applicable, authorization.

The Exact Legal Text:

ARTICLE 6
INFORMATION SYSTEMS

6.1 Contracting Parties may establish information systems (such as databases) of genetic resources and traditional knowledge associated with genetic resources, in consultation, where applicable, with Indigenous Peoples and local communities, and other stakeholders, taking into account their national circumstances.

6.2 Contracting Parties should, with appropriate safeguards developed in consultation, where applicable, with Indigenous Peoples and local communities, and other stakeholders, make such information systems accessible to Offices for the purposes of search and examination of patent applications. Such access to the information systems may be subject to authorization, where applicable, by the Contracting Parties establishing the information systems.

6.3 In regard to such information systems, the Assembly of the Contracting Parties may establish one or more technical working groups to address any matters relating to the information systems, such as accessibility to Offices with appropriate safeguards.

Keywords/Triggers:

genetic resources database, traditional knowledge database, patent search, patent examination, information systems, genetic resource information, patent office access, traditional knowledge records